

Using This PDF Form

1. Copies
 - a. Original – to court
 - b. First copy – to appellant
 - c. Additional copies as dictated by local practice.
2. Prepared by clerk.
3. Attachments – None.

Data Elements

1. Court case number.
2. Court name.
3. Address of court.
4. Telephone number of court.
5. Check this box and complete if the Commonwealth is the plaintiff.
6. Check this box and complete if Data Element No. 5 is not applicable.
7. Name of district court from which case was appealed.
8. Date and time of required appearance in circuit court by the person served.
9. Check this box if the purpose of the hearing is to schedule a trial date.
10. Check this box if the date and time entered in Data Element No. 8 is for the trial of the case.
11. Check this box if the purpose of the hearing is to consider the appellant's notice of intent to withdraw the appeal. This is for civil cases only.
12. Date notice issued.
13. Signature of clerk if the clerk executed this form. If the deputy clerk executed this form, print or type the clerk's name.
14. Signature of deputy clerk if deputy clerk executed this form.
15. Check this box and provide the relevant contact information for personal service of this notice.
16. Return of service information completed by serving officer.

NOTICE OF HEARING ON AN APPEAL
FROM A DISTRICT COURT
COMMONWEALTH OF VIRGINIA

Case No. 1

2 Circuit Court

3 ADDRESS 4 TELEPHONE NUMBER

5 [] Commonwealth of Virginia v. _____

6 [] _____ v. _____

7 District Court is the court from which this case is appealed.

This case is scheduled in the circuit court at the address above on 8 for the following purpose:
DATE AND TIME

9 [] scheduling a date on which this case will be tried

10 [] trial of this case, and

- you must be present and ready to try this case at the hearing
- Immediately contact the clerk's office of this court if you want one or more of the following:
 - a lawyer to represent you at trial (criminal cases only)
 - witnesses to be subpoenaed to appear in court to testify for you
 - a jury trial
 - an interpreter

11 [] consider appellant's notice of intent to withdraw the appeal (civil cases only).

NOTICE IN SUPPORT CASES – Sections 16.1-298 and 20-74 of the Code of Virginia, 1950, as amended, provide that any order of support or amendment thereof entered by the Juvenile and Domestic Relations District Court shall remain in full force and effect until changed or annulled by the circuit court.

NOTICE ABOUT WITHDRAWAL OF APPEALS –

Criminal Cases: If you withdraw your appeal, you must notify in writing both the clerk's office of circuit court and the prosecuting attorney before the trial date. In addition, you must pay all costs and fines through the clerk's office of this court and perform all other parts of the district court's punishment.

Civil Cases: If you wish to withdraw your appeal, you must file in circuit court a written notice of intent to withdraw your appeal, and serve, in person or by first-class mail all other parties or their counsel. If any party files a timely written objection to the withdrawal of your appeal, you may be denied permission to withdraw.

NOTICE ABOUT COURT COSTS AND FEES IN APPEALS OF CRIMINAL AND TRAFFIC CASES – Court costs and fees in the circuit court will be assessed in cases resulting in conviction of a misdemeanor not originally charged as a felony, a deferred disposition of proceedings, a referral to a driver improvement clinic or traffic school in lieu of a finding of guilt for a traffic infraction, or proof of compliance with law under § 46.2-104, requiring a driver's license or permit and registration, and § 46.2-1157, requiring safety inspection and correction of defects of motor vehicles. These costs and fees shall be in addition to any fee assessed in the district court.

12 13
DATE _____, Clerk

by 14, Deputy Clerk

[] Serve in person:

15

NAME	ADDRESS	TELEPHONE NO.
NAME	ADDRESS	TELEPHONE NO.
NAME	ADDRESS	TELEPHONE NO.
NAME	ADDRESS	TELEPHONE NO.

RETURN OF SERVICE

☐ Personal Service ☐ Being unable to make personal service, a copy was delivered in the following manner:

☐ Delivered to family member (not temporary sojourner or guest) age 16 or older at usual place of abode of party named above after giving information of its purport. List name, age of recipient, and relation of recipient to party named above:

.....

☐ Posted on front door or such other door as appears to be the main entrance of usual place of abode, address listed above. (Other authorized recipient not found.)

☐ Delivered to a person found in charge of usual place of business or employment during business hours and giving information of its purport.

☐ Not found

....., Sheriff

Date

by, Deputy Sheriff